

PROCEEDING OF WARNING

From the proceeding initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: A.A.A. (hereinafter, the complainant) filed a complaint with the data protection authority of France on September 20, 2022. The complaint is directed against INEXPRIV, S.L. with NIF B76058312 (hereinafter, INEXPRIV). The reasons for the complaint are as follows:

The complainant requested the removal of photographs of themselves from the site ***URL.1, where these photographs appeared alongside their name on websites dedicated to movies in which the complainant had participated. These photographs had been obtained from other sites where the complainant's photographs had already been removed.

- Printout of an email sent from ***EMAIL.1 (hereinafter, complainant's email) to ***EMAIL.2, dated August 20, 2022, in which the complainant requests the deletion of their personal data as follows:

"Dear Madam, Dear Sir,

I am asking for the deletion of my profile from your website as I am not an actress anymore.

***URL.2

Please proceed to the deletion of the profile as quickly as possible."

[Unofficial translation:

"Estimada señora, estimado señor:

Le solicito la supresión de mi perfil de su sitio web porque ya no soy actriz.

***URL.2

Por favor, realice la supresión de mi perfil tan pronto como pueda."]

Along with this text, a printout of a Google search is provided, in which the name and surname of the complainant were entered as search criteria, and appears, as the third result, a link to a profile with that name and surname on the website ***URL.1.

- Printout of an email sent from the complainant's email to ***EMAIL.2 and ***EMAIL.3, dated September 5, 2022, in which the complainant requests the deletion of their personal data as follows:

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"Dear Sir, Dear Madam,

Pursuant to Data Privacy laws, I request the delete of my profile page on cine.com.

Please treat this request as urgent.

Kind regards"

[Unofficial translation:

"Estimado señor, estimada señora:

Conforme a la regulación de privacidad de datos, le solicito que elimine mi perfil de la página cine.com.

Por favor, trate esta solicitud como urgente.

Atentamente"]

- Printout of the WHOIS search result for the domain name "cine.com." From this search, the following information is extracted, among others: that the domain name "cine.com" was registered by INEXPRIV S.L., located in Las Palmas (Spain).

SECOND: Through the "Internal Market Information System" (hereinafter IMI System), regulated by Regulation (EU) No. 1024/2012 of the European Parliament and of the Council, of October 25, 2012 (IMI Regulation), whose objective is to promote cross-border administrative cooperation, mutual assistance among member states, and the exchange of information, the aforementioned complaint

was transmitted on February 20, 2023, and was registered with the Spanish Agency for Data Protection (AEPD) on February 21, 2023. The transfer of this complaint to the AEPD was carried out in accordance with the provisions of Article 56 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, regarding the Protection of Natural Persons with regard to the Processing of Personal Data and the Free Movement of such Data (hereinafter, GDPR), taking into account its cross-border nature and that this Agency is competent to act as the lead supervisory authority, given that INEXPRIV has its sole establishment in Spain.

According to the information incorporated into the IMI System, in accordance with the provisions of Article 60 of the GDPR, the data protection authority of France acts as the interested authority, in accordance with the provisions of Article 4.22) letter c) of the GDPR, as it is the supervisory authority to which the complaint has been submitted, without other supervisory authorities having declared themselves interested in the present proceeding.

THIRD: On March 22, 2023, in accordance with the then-current Article 64 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter, LOPDGDD), the complaint filed by the complainant was admitted for processing.

FOURTH: The General Sub-Directorate for Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to supervisory authorities in Article 57.1 and the powers granted in Article 58.1 of the GDPR, and of

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in accordance with the provisions established in Title VII, Chapter I, Section Two, of the LOPDGDD, being aware of the following points:

1. On June 15, 2023, a navigation was conducted on the website ***URL.1, and the following information was obtained, among others:

- There is a profile with the filmography of A.A.A., which includes 6 titles.
- Within the section of the website ***URL.1 dedicated to "Contact," the following options are provided to contact the website:
- A web form.
- Links to cine.com profiles on Facebook, Instagram, and Twitter.
- The postal address "****DIRECCIÓN.1"
- The phone number "+***TELÉFONO.1"
- The email "***EMAIL.2"

2. On July 14, 2023, a navigation was conducted on the website ***URL.3 through which the historical content of the webpage "****URL.1" was obtained, yielding the following information, among others:

- The webpage "****URL.1" contains the privacy policy of the website "****URL.1".
- The historical version of the webpage "****URL.1" stored in ***URL.3 immediately prior to the deletion request made by the claimant corresponds to the date of January 20, 2022. Within this version, in the section "Data Controller," it states that the data controller is "Inexpri S.L. - Address: ***DIRECCIÓN.1, Spain - Email: ***EMAIL.2"; and in the section "Rights of the Data Subjects," it indicates the following: "You may exercise your rights of access, rectification, deletion, and portability of your data, limitation and opposition to its processing, as well as not to be subject to decisions based solely on the automated processing of your data, where applicable, at the email address ***EMAIL.4, indicating the email with which you registered and your user number, and it will be deleted immediately from our database. The revocation of such consent will result in the loss of all data stored in our database for the email in question, which cannot be recovered in the future."

3. On July 4, 2023, a document was submitted to the AEPD on behalf of INEXPRIV in response to an information request, in which the following information was provided, among others:

- Indication that "We could not act due to ignorance of the case until the moment we read your notification. On the same day it was read (June 21), the webpage of the applicant was deleted."
- Indication regarding the causes that led to this complaint, stating that "The emails from the claimant

went to the SPAM folder, so we were unaware of this situation until we received this electronic notification." ... "probably because the email was sent in English, the filter blocked it, and we could not attend to the request until this notification arrived."

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- Indication that a response has been sent to the claimant by email in English and Spanish, and the text of this email is transcribed as follows:

"Dear A.A.A..

In response to your request, we have proceeded to eliminate from our database all the information related to the actress "A.A.A.", including the images and the url ***URL.1.

We feel the inconvenience caused.

We remain at your disposal for any questions that may arise through the email ***EMAIL.2

Estimada A.A.A.

Atendiendo a su petición hemos procedido a eliminar de nuestra base de datos toda la información relativa a la actriz "A.A.A.", incluidas las imágenes y la url ***URL.1.

Sentimos las molestias ocasionadas.

Quedamos a su disposición para cualquier duda que le pueda surgir a través del correo electrónico ***EMAIL.2"

- Indication regarding the measures taken after receiving the information request, stating that:

"On June 21, the page of A.A.A. (***URL.1) was deleted, and on July 4, we indicated to the robots (Google, Bing...) not to index it, through the (...), thus, although there is no longer any information, search engines will not index it.

On July 3, a specific page was added that clearly indicates that the content has been deleted. In the previous system, they were redirected to a general actors' page.

On July 3, a tracking system for these cases was implemented in the backend to be reviewed, from the moment they are notified until they are deleted.

On July 3, as is often the case, actors and actresses (or their fans) request to appear on the page, a code has been incorporated that does not allow adding an actor or actress to the database who has been previously deleted. This prevents someone from adding in the future; in summary, the URLs are blocked.

On July 3, the anti-spam filter was lowered to allow more emails into the inbox; additionally, the SPAM folder will be reviewed to avoid false positives."

4. On July 13, 2023, a navigation was conducted on the website ***URL.1, and the following information was obtained, among others:

- The webpage ***URL.1 redirects to ***URL.1, which displays the following message:

"Page deleted. This page has been removed from the database."

5. On July 14, 2023, a navigation was conducted on the website <https://www.google.com>, and the following information was obtained, among others:

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- Searches for the terms "A.A.A." were conducted without obtaining results related to the claimant in the first four results.

- Searches for the terms "A.A.A." within the website "cine.com" were conducted without finding results.

FIFTH: According to the search conducted on July 17, 2023, in the Monitoriza service of Axesor (***URL.4), it is recorded that the entity INEXPRIV S.L. is a "Self-employed" type company with a share capital of XX.XXX €.

SIXTH: On March 1, 2024, the Director adopted a draft agreement to initiate the warning procedure. Following the process established in Article 60 of the GDPR, on March 5, 2024, the aforementioned draft was transmitted through the IMI system, and the interested authorities were informed that they had four weeks from that moment to submit relevant and justified objections. Within the deadline for this purpose, the control authority of France submitted observations regarding the aforementioned draft agreement to initiate the warning procedure, which is why on April 2, 2024, the Spanish Agency for Data Protection withdrew the aforementioned decision from the IMI system. The processing period of the proceedings was automatically suspended during that period, in accordance with the provisions of Article 64 of the LOPDGDD.

SEVENTH: On April 3, 2024, the Director adopted a draft agreement to initiate the warning procedure. Following the process established in Article 60 of the GDPR, on April 4, 2024, the aforementioned draft was transmitted through the IMI system, and the interested authorities were informed that they had four weeks from that moment to submit relevant and justified objections. Within the deadline for this purpose, the interested control authorities did not submit relevant and justified objections, so it is considered that all authorities agree with the said draft decision and are bound by it, in accordance with the provisions of paragraph 6 of Article 60 of the GDPR. The processing period of the proceedings was automatically suspended during that period, in accordance with the provisions of Article 64 of the LOPDGDD.

EIGHTH: On May 6, 2024, the Director of the Spanish Agency for Data Protection decided to initiate a warning procedure against the respondent party for the alleged infringement of Article 17 of the GDPR, classified under Article 83.5.b) of the GDPR.

NINTH: The notification of the aforementioned initiation agreement, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was received on May 6, 2024, as recorded in the acknowledgment of receipt in the file.

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TENTH: On May 18, 2024, a written statement of allegations was received from the respondent party in which, in summary, the following considerations are presented:

INEXPRIV states that, following the notification received, they have adopted the following measures:

1. Deletion of the profile:

The deletion of the claimant's profile, including images and the URL, occurred on June 21, 2023, the same day they received the first communication from this Agency.

2. Update of the email system:

They identified that the emails sent by the claimant did not reach the main email folder, and the reason they provide is that the filter likely acted because they were written in English. To prevent this situation from happening again, they have adjusted the spam filter settings to allow the entry of virtually all emails, regardless of the language.

3. Additional measures:

As additional measures, they state that:

- they have implemented a tracking and management system for requests from data subjects, ensuring that all requests are reviewed and addressed in a timely manner.

- a specific page has been added to their website clearly indicating that the content has been deleted, to ensure transparency and clarity for users.

- a code has been created in their systems that prevents the re-incorporation of profiles that have been previously deleted, to ensure that they cannot be added in the future.

Furthermore, INEXPRIV wants to emphasize that they acted immediately upon becoming aware of the situation, even before determining whether the information was public or not.

For all these reasons, they request that the warning be lifted, having demonstrated their commitment to data protection and having implemented measures to ensure compliance with the regulations and prevent future incidents.

In view of all that has been done, the following facts are considered proven by the Spanish Agency for Data Protection in the present procedure,

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PROVEN FACTS

FIRST: The claimant has submitted a complaint, in which it is verified that, on August 20, 2022, they sent an email to the address ***EMAIL.2, and on September 5, 2022, they sent another email to the address ***EMAIL.2 and the address ***EMAIL.3 requesting the deletion of their data.

SECOND: It has been verified that the address ***EMAIL.2 is listed as the contact address of the data controller in the privacy policy, expressed as follows: “Data Controller,” it appears that the data controller is “Inexpriv S.L. - Address: ***ADDRESS.2, Spain - Email: ***EMAIL.2”

THIRD: It is recorded that INEXPRIV has proceeded to delete the claimant's data, through an email sent to the claimant, which explicitly lists the contact address ***EMAIL.2.

LEGAL GROUNDS

I

Competence and applicable regulations

In accordance with the powers granted to each supervisory authority by Article 58.2 and 60 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: “The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures.”

II

Preliminary issues

In the present case, in accordance with the provisions of Articles 4.1 and 4.2 of the GDPR, it is established that there is a processing of personal data, since INEXPRIV collects and retains, among others, the following personal data of individuals: name and surname, image, among other processing activities.

INEXPRIV carries out this activity in its capacity as data controller, as it is the one who determines the purposes and means of such activity, by virtue of Article 4.7 of the GDPR. Furthermore, it is a cross-border processing, given that INEXPRIV is established in Spain, although it provides services to other countries in the European Union.

For its part, Article 17 of the GDPR regulates the right to erasure (right to be forgotten).

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III

Claims made

In relation to the claims made regarding the initiation agreement of the present warning procedure, a response is provided according to the order presented by INEXPRIV:

INEXPRIV basically claims that since June 21, 2023, the date on which it received the first document from this Agency, it proceeded to delete the claimant's profile. It states that they identified that the claimant's emails did not arrive in the main folder, probably because the filter acted since they were written in English, and that to prevent this from happening again, they have adjusted the spam filter. Additionally, they highlight that they have adopted a series of measures to prevent a similar situation from occurring again.

Finally, they request that the warning be lifted, considering that they acted as soon as they became aware of the situation, and based on the measures adopted.

In relation to this issue, the Guidelines 01/2022 on the rights of data subjects - Right of access, state that "there are no specific requirements regarding the format of a request. The data controller must provide appropriate and easy-to-use communication channels that can be easily used by the data subject. However, the data subject is not obliged to use these specific channels and may instead send the request to an official contact point of the data controller. The data controller is not obliged to respond to requests sent to completely random or apparently incorrect addresses."

Thus, in section 3.1.2 regarding the form of the request, it is stated:

52. As previously noted, the GDPR does not impose any requirements on data subjects regarding the form of the request for access to personal data. Therefore, in principle, there are no requirements under the GDPR that data subjects must observe when choosing a communication channel through which to contact the data controller.

53. The EDPB encourages data controllers to provide the most appropriate and easy-to-use communication channels, in accordance with Article 12, paragraph 2, and Article 25, so that the data subject can submit an effective request. However, if the data subject submits a request through a communication channel provided by the data controller that is different from the one indicated as preferred, such request will generally be considered effective, and the data controller must process such request accordingly (see the examples provided below). Data controllers must make all reasonable efforts to ensure that the exercise of data subjects' rights is facilitated (for example, in case the data subject sends the request to an incorrect address).

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request to an employee who is on leave, an automatic message informing the interested party about an alternative communication channel for their request could be a reasonable effort).

54. It should be noted that the data controller is not obliged to respond to a request sent to a random or incorrect email address (or postal address) not directly provided by the data controller, nor to any communication channel that is clearly not intended to receive requests related to the rights of the data subject, if the data controller has provided an appropriate communication channel that can be used by the data subject.

55. The data controller is also not obliged to respond to a request sent to the email address of an employee of the data controller who may not be involved in processing requests related to the rights of the data subjects (for example, drivers, cleaning staff, etc.). These requests will not be considered effective if the data controller has clearly provided the data subject with an appropriate communication channel. However, if the data subject sends a request to the employee of the data controller who deals daily with the matters of the data subject (a single point of contact for a client, such as, for example, a personal account manager), such contact should not be considered random, and the data controller must make all reasonable efforts to process such a request in a way that it can be redirected to the point of contact and respond within the timeframes set by the GDPR.

56. Nevertheless, the EDPB recommends, as good practice, that data controllers implement appropriate mechanisms to facilitate the exercise of the rights of data subjects, including auto-response systems to inform about staff absences and the appropriate alternative contact, and, where possible, mechanisms to improve internal communication among employees regarding requests received by those who may not be competent to process them."

In this case, the claimant contacted the email ***EMAIL.2 on two occasions requesting the deletion of their personal data.

INEXPRIV has acknowledged that it did not proceed to address the exercise of the claimant's right because it did not receive it, as it may have gone to the spam folder, and that to prevent a similar situation from occurring again, it has adopted a series of measures, which it lists in its writing.

In this regard, according to these statements, the right was not addressed until it received the information request sent from this Agency on June 21, 2023, as INEXPRIV acknowledges, while the claimant's first request is dated August 20, 2022.

In this case, the claimant contacted an email address enabled by INEXPRIV for the deletion request. Furthermore, in the email communicating to the claimant the deletion of the data, that same email address is provided as a contact address for any issues they wish to raise. Therefore, considering these...

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circumstances, and according to the guidelines mentioned above, the request made by INEXPRIV to remove the warning cannot be granted.

IV

Right to Erasure (Right to be Forgotten)

Article 17 “Right to Erasure (‘the right to be forgotten’)” of the GDPR states:

“1. The data subject shall have the right to obtain from the controller the erasure of personal data concerning him or her without undue delay, and the controller shall be obliged to erase personal data without undue delay when one of the following applies:

- a) the personal data are no longer necessary in relation to the purposes for which they were collected or otherwise processed;
- b) the data subject withdraws consent on which the processing is based according to Article 6(1)(a) or Article 9(2)(a), and where there is no other legal ground for the processing;
- c) the data subject objects to the processing pursuant to Article 21(1), and there are no overriding legitimate grounds for the processing, or the data subject objects to the processing pursuant to Article 21(2);
- d) the personal data have been unlawfully processed;
- e) the personal data must be erased for compliance with a legal obligation in Union or Member State law to which the controller is subject;
- f) the personal data have been collected in relation to the offer of information society services referred to in Article 8(1).

(...)”

For its part, Article 12 “Transparency of information, communication and modalities for the exercise of the rights of the data subject” of the GDPR states:

“(...)”

3. The controller shall provide the data subject with information on actions taken on a request under Articles 15 to 22 without undue delay and in any event within one month of receipt of the request. This period may be extended by a further two months where necessary, taking into account the complexity and number of requests. The controller shall inform the data subject of any such extension within one month of receipt of the request, together with the reasons for the delay. When the data subject submits the request by electronic means, the information shall be provided by electronic means where possible, unless the data subject requests otherwise.

4. If the controller does not take action on the request of the data subject, it shall inform the data subject without undue delay and at the latest within one month of receipt of the request, of the reasons for not taking action and of the possibility of lodging a complaint with a supervisory authority and seeking a judicial remedy. (...)”

In this case, it has been established that the complainant requested the erasure of their personal data

on two occasions, on August 20, 2022, and September 5, 2022, which were not addressed. These requests were sent to the email ***EMAIL.2.

INEXPRIV has stated that a possible reason for not addressing the complainant's request is that the emails ended up in the SPAM folder, and therefore they would not have been aware of this situation until they received the electronic notification sent by this Agency.

Furthermore, it has stated that they proceeded to erase the complainant's data on June 21, 2023, and sent an email to the complainant from the email address ***EMAIL.2 to communicate this.

From this statement, it is concluded that until June 2023, the complainant had not received any response to their request. That is to say, the legal deadline established to respond to the complainant's request regarding the erasure of their personal data had been exceeded.

However, for the purposes of the statute of limitations for infringements, Article 74 of the LOPDGDD classifies the following conduct as minor:

“Minor infringements are considered to be those of a merely formal nature as set out in paragraphs 4 and 5 of Article 83 of Regulation (EU) 2016/679 and shall be subject to a one-year limitation period.”

Therefore, since more than a year has passed since INEXPRIV should have responded to the complainant, the possible infringement of Article 12 would be time-barred.

However, it has been established that the request for erasure was not addressed in time, which would constitute an infringement of Article 17 of the GDPR. Therefore, in accordance with the evidence available at this stage of the warning procedure, it is considered that the known facts constitute an infringement attributable to INEXPRIV for violation of Article 17 of the GDPR.

V

Classification and Qualification of the Infringement of Article 17 of the GDPR

The known facts constitute an infringement attributable to INEXPRIV, classified under Article 83.5.b) of the GDPR, which considers infringements of the provisions of the rights of data subjects as violations in accordance with Articles 12 to 22 (Article 83.5.b GDPR).

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For the purposes of the statute of limitations, Article 72.1.k) "very serious infringements" of the LOPDGDD provides as follows:

“1. In accordance with what is established in Article 83.5 of Regulation (EU) 2016/679, the following infringements are considered very serious and shall be subject to a three-year statute of limitations, which involve a substantial violation of the articles mentioned therein and, in particular, the following: (...)

k) The obstruction or hindrance or the repeated failure to address the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679.”

V

Warning for the infringement of Article 17 of the GDPR

Without prejudice to the provisions of Article 83 of the GDPR, the aforementioned Regulation provides in paragraph 2.b) of Article 58 “Powers” as follows:

“Each supervisory authority shall have all of the following corrective powers indicated below: (...)

b) issue a warning to any controller or processor when the processing operations have infringed the provisions of this Regulation; (...)”

Article 64 of the LOPDGDD, which regulates the “Initiation of the procedure and duration,” states in its third paragraph that:

“3. When appropriate, taking into account the nature of the facts and duly considering the criteria established in Article 83.2 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, the Spanish Data Protection Agency, after hearing the controller or processor, may issue a warning, as well as order the controller or processor to adopt corrective measures aimed at

ending the possible non-compliance with data protection legislation in a specific manner and within the specified timeframe.

The procedure shall have a maximum duration of six months from the date of the initiation agreement. After this period, it shall expire, and consequently, the proceedings shall be archived.

The provisions of the second and third paragraphs of section 2 of this article shall apply in this case.”

In the present case, considering the circumstances listed in Article 83.2 GDPR, once all the documentation in the file has been analyzed, it is deemed lawful to issue a warning to INEXPRIV.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been established,

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the Director of the Spanish Data Protection Agency RESOLVES:

FIRST: TO ISSUE A WARNING to INEXPRIV, S.L., with NIF B76058312, for an infringement of Article 17 of the GDPR, classified under Article 83.5.b) of the GDPR.

SECOND: TO NOTIFY this resolution to INEXPRIV, S.L.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file an appeal for reconsideration before the Director of the Spanish Data Protection Agency within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal.

If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Data Protection Agency, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation evidencing the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

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Mar España Martí

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